

No. \_\_\_\_\_

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**In the Supreme Court of the United States**

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DONALD J. TRUMP; DONALD J. TRUMP, JR.; ERIC TRUMP; IVANKA TRUMP; DONALD J. TRUMP REVOCABLE TRUST; TRUMP ORGANIZATION, INC.; TRUMP ORGANIZATION LLC; DJT HOLDINGS LLC; DJT MANAGING MEMBER LLC; TRUMP ACQUISITION LLC; TRUMP ACQUISITION, CORP.,

*Applicants,*

v.

DEUTSCHE BANK AG; CAPITAL ONE FINANCIAL CORPORATION; COMMITTEE ON FINANCIAL SERVICES OF THE UNITED STATES HOUSE OF REPRESENTATIVES; PERMANENT SELECT COMMITTEE ON INTELLIGENCE OF THE UNITED STATES HOUSE OF REPRESENTATIVES,

*Respondents.*

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On Application for Recall and Stay

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**EMERGENCY APPLICATION FOR A RECALL AND STAY OF MANDATE  
PENDING THE FILING AND DISPOSITION OF  
A PETITION FOR A WRIT OF CERTIORARI**

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## **PARTIES TO THE PROCEEDING AND RELATED PROCEEDINGS**

The parties to the proceeding below are as follows:

Applicants are Donald J. Trump, President of the United States of America; Donald J. Trump, Jr.; Eric Trump; Ivanka Trump; Donald J. Trump Revocable Trust; Trump Organization, Inc.; Trump Organization LLC; DJT Holdings LLC; DJT Managing Member LLC; Trump Acquisition LLC; and Trump Acquisition, Corp. They were plaintiffs in the district court and appellants in the court of appeals.

Respondents are Deutsche Bank AG; Capital One Financial Corporation; the Committee on Financial Services of the United States House of Representatives; Permanent Select Committee on Intelligence of the United States House of Representatives. Deutsche Bank and Capital One were defendants in the district court and appellees in the court of appeals. The Committees were intervenor-defendants in the district court and intervenor-appellees in the court of appeals.

The related proceedings below are:

1. *Trump v. Deutsche Bank AG*, No. 19-1540 (2d Cir.) – Judgment entered December 3, 2019; and
2. *Trump v. Deutsche Bank AG*, No. 19-cv-3826 (ER) (S.D.N.Y.) – Judgment entered May 22, 2019.

## **CORPORATE DISCLOSURE STATEMENT**

Per Supreme Court Rule 29, Applicants Trump Organization, Inc., Trump Organization LLC, DJT Holdings LLC, DJT Managing Member LLC, Trump Acquisition LLC, and Trump Acquisition, Corp. state that they have no parent companies or publicly-held companies with a 10% or greater ownership interest in them.

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To the Honorable Ruth Bader Ginsburg, Associate Justice of the Supreme Court of the United States and Circuit Justice for the Second Circuit:

Less than two weeks ago, this Court stayed the mandate in *Trump v. Mazars USA, LLP*, No. 19A545, 2019 WL 6328115 (U.S. Nov. 25, 2019). Three days ago, the Second Circuit issued its decision in this companion case concerning the validity of congressional subpoenas. Over the dissent of Judge Livingston, the panel held that the bulk of the records subject to these subpoenas were within the authority of the U.S. House of Representatives Financial Services and Intelligence Committees to issue and ordered “prompt compliance” with them. Appendix (“App.”) 5a. On its own motion, moreover, the Second Circuit issued the mandate before Applicants could consider seeking rehearing en banc or could ask to have the mandate stayed pending the filing and disposition of a petition for certiorari.

That same day, counsel for Applicants contacted the House General Counsel and offered to file a certiorari petition on an expedited schedule—nearly identical to the one voluntarily agreed to in *Trump v. Vance*, No. 19-635, and the one this Court ordered in *Mazars*—in exchange for staying enforcement of the subpoenas pending certiorari. That offer was rejected, notwithstanding the Court’s decision to stay the mandate in *Mazars*, notwithstanding House Counsel’s acknowledgment that the two cases raise similar issues, and notwithstanding the Committees’ agreement to voluntarily stay the subpoenas for more than six months while the case wound its way through the lower courts. Regrettably, then, Applicants must file another emergency application to keep the President’s claims from being mooted.

The Court should grant this application to recall and stay the mandate. The Court concluded that a stay is warranted in *Mazars* and, as House Counsel correctly explained to the Second Circuit, “*Mazars* involves the same legal issues presented here.” CA2 Doc. 205 at 1. And, in both cases, mootness will deprive the Court of the opportunity to decide for itself whether to hear this important separation-of-powers dispute absent a stay. Accordingly, the issue at this stage is straightforward: whether the President will be allowed to petition for review of an unprecedented demand for his personal papers, or whether he will be deprived of that opportunity because the Committees issued these subpoenas to third parties with no incentive to test their validity. This choice should be easy.

The Court does not “proceed against the president as against an ordinary individual,” and it extends him the “high degree of respect due the President of the United States.” *United States v. Nixon*, 418 U.S. 683, 708, 715 (1974). This approach is not driven by concern for any “particular President,” but for sake of “the Presidency itself.” *Trump v. Hawaii*, 138 S. Ct. 2392, 2418 (2018). Respect for the Office warrants a stay to prevent the President from being denied further review because his case was mooted through no fault of his own. *See Garrison v. Hudson*, 468 U.S. 1301, 1302 (1984) (Burger, C.J., in chambers); *John Doe Agency v. John Doe Corp.*, 488 U.S. 1306, 1309 (Marshall, J., in chambers).

There is also a fair prospect the Court will reverse the judgment below if it grants certiorari. “The legislative subpoenas here are deeply troubling.” App. 108a (Livingston, J., concurring in part and dissenting in part). As Judge Livingston

explained, this case raises “profound separation-of-powers concerns.” App. 118a. The Committees’ desire to use the President, his family, and his businesses as a case study is not a “legitimate legislative purpose.” *Eastland v. U.S. Servicemen’s Fund*, 421 U.S. 491, 501 n.14 (1975). It is an attempt to exercise executive power beyond Congress’s legislative reach and to expose Applicants’ private records “for the sake of exposure.” *Watkins v. United States*, 354 U.S. 178, 200 (1957). The Committees cannot make the heightened showing needed to justify subpoenaing these records for legislative purposes. *See Nixon*, 418 U.S. at 713. And, the Committees lack the express statutory authority that should be required to subpoena the President’s records given the serious constitutional issues this controversy raises. *See United States v. Rumely*, 345 U.S. 41, 46-48 (1953).

The balance of equities also favor a stay. The idea that the Committees have an urgent need to consider legislation during the short period of time the petition will be under review is implausible. Regardless, any harm the Committees might endure pales in comparison to the case-mooting harm Applicants will suffer. When it comes to the balance of harms, this is not a “close case.” *Rostker v. Goldberg*, 448 U.S. 1306, 1308 (1980) (Brennan, J., in chambers).

For these reasons, Applicants respectfully ask the Court to recall and stay the Second Circuit’s mandate pending the filing and disposition of Applicants’ petition for certiorari. Because “compliance with the three subpoenas” has only been “stayed for seven days to afford Appellants an opportunity to apply to the Supreme Court or a Justice thereof for an extension of the stay,” App. 106a, Applicants also respectfully

ask the Court to administratively recall and stay issuance of the mandate pending disposition of this Application by December 10.

### **OPINIONS BELOW**

The Second Circuit's opinion is not yet reported but is available at *Trump v. Deutsche Bank AG*, 2019 WL 6482561 (2d Cir. Dec. 3, 2019), and it is reproduced at App. 1a-165a. The district court's order is not reported but is available at *Trump v. Deutsche Bank AG*, 2019 WL 2204898 (S.D.N.Y. May 22, 2019), and it is reproduced at App. 166a-67a. The district court incorporated by reference its opinion read into the record during the preliminary-injunction hearing held May 22, 2019. The relevant portion of the transcript from that hearing is reproduced at App. 167a-204a.

### **JURISDICTION**

The Second Circuit issued its opinion on December 3, 2019. In that opinion, the court ordered that the mandate issue immediately. App. 106a. On December 4, 2019, Applicants filed a motion to recall and stay the mandate with the Second Circuit. CA2 Doc. 229. The Second Circuit has not yet ruled on that motion. Absent a stay from this Court, Applicants will suffer irreparable harm on December 11, 2019. This Court has jurisdiction now to entertain and grant a request for a recall and stay of the mandate pending filing of a petition for certiorari under 28 U.S.C. § 2101(f). *See* S. Ct. R. 23.3 (allowing applicants to seek a stay from the Supreme Court before the court of appeals in "extraordinary circumstances").

### **STATEMENT OF THE CASE**

This dispute involves three subpoenas issued by the House Financial Services and Intelligence Committees. First, the Financial Services Committee subpoenaed

Capital One for account records concerning fifteen of the President’s business entities, as well as any “parent, subsidiary, affiliate” and “principal, including directors, shareholders, or officers.” CA2 Doc. 37 at 55. The subpoena also demands any information about any account “in which such entities are or were a beneficiary, or beneficial owner, or in which such entities have or have had in any way control over, individually or with others.” *Id.* at 55-56. The only legislative purpose that the Financial Services Committee asserts for the Capital One subpoena is to inform the inquiry referenced in House Resolution 206, which expresses concern over money laundering and other financial crimes. *See* H.R. Res. No. 116-206, at 5 (Mar. 13, 2019). The Committee contends that it wants to use “Mr. Trump, his family, and his businesses ... as a useful case study” to learn about “unsafe lending practices” and “money laundering.” Dkt. 51 at 25.

The second and third subpoenas are identical. Both are issued to Deutsche Bank AG—one by the Financial Services Committee and one by the Intelligence Committee. These subpoenas are even broader than the Capital One subpoena. They demand information about seven business entities, as well as the personal accounts of not only the President, but also Donald Trump Jr., Eric Trump, and Ivanka Trump. CA2 Doc. 37 at 40. The Committees also demand account records for all of the named individuals’ immediate families—meaning their spouses and minor children (and, in the President’s case, his grandchildren). *Id.* The subpoenas cover any “trustee, settler or grantor, beneficiary, or beneficial owner” of each account, as well as “any current or former employee officer, director, shareholder, partner,

member, consultant, senior manager, manager, senior associate, staff employee, independent contractor, agent, attorney or other representative.” *Id.* And they seek these records for a time period of at least ten years (dating back to January 1, 2010); some requests have no time limitation at all. *See id.* at 40-45.

In all, these are “extraordinarily broad subpoenas.” App. 158a (Livingston, J., concurring in part and dissenting in part). They target financial institutions that the President, his businesses, and his family used long before his election to office. They seek documents reaching back more than a decade, cover individuals who have never held government office (including minor children), and seek virtually every financial detail that the institutions might have about Applicants’ private affairs. See CA2 Doc. 37 at 40-70. As the United States put it, these “sweeping” subpoenas demand “a constellation of transactions that would permit the Committees to reconstruct in detail the financial history of the President and his family members.” U.S. Amicus Br. 22, CA2 Doc. 143 at 27. Furthermore, “the committees have not committed one way or the other to keeping [Applicants’] records confidential from the public once received.” App. 14a.

Applicants challenged the subpoenas by filing suit against the banks on April 29, 2019. They sought a preliminary injunction a few days later. Applicants claimed that the subpoenas exceed the Committees’ constitutional and statutory authority. The Committees intervened as defendants and opposed the preliminary-injunction motion. CA2 Doc. 37 at 10-11. Deutsche Bank and Capital One took no position. All the parties agreed, however, to suspend the return date of the subpoenas until after

the district court ruled on the preliminary-injunction motion. The parties appeared before the district court for a hearing on May 22.

At the hearing, the district court questioned Applicants and the Committees extensively. The court then took a ten-minute recess, returned to the bench, and read aloud a prepared 25-page order, the transcript of which is the only record of the decision below. *See* App. 167a-204a. The district court found that Applicants would suffer irreparable harm, App. 172a-73a, but it ultimately denied Applicants' preliminary-injunction motion, App. 168a. Applicants appealed. The parties agreed to further stay enforcement of the subpoenas until the Second Circuit issued the mandate.

On December 3, 2019, a divided panel of the Second Circuit affirmed. The majority issued a 106-page opinion; Judge Livingston issued a 59-page opinion in which she partially concurred and partially dissented. App. 1a-165a. The majority held, *inter alia*, that the Committees had legitimate legislative purposes for issuing the subpoenas and that they were not exercises of executive power or attempts to expose Applicants' records for the sake of exposure. App. 49a, 64a, 66a, 75a-80a. It agreed with the Financial Services Committee that the President and his family would be a useful "case study" as Congress considers legislative reforms. App. 73a n.67. The majority also rejected any requirement that the Committees make a heightened showing of need or identify express statutory authority to demand these documents because, in its view, the dispute "does not concern separation of powers." App. 89a-90a.

The majority was concerned, however, about a few aspects of the subpoenas that “might include some documents warranting exclusion,” App. 85a, because they “might reveal sensitive personal details having no relationship to the Committees’ legislative purposes,” App. 84a. As to this subset of documents, the majority ordered a “limited” remand subject to an expedited procedure that would allow Applicants to raise specific challenges. App. 86a-87a. But as for the bulk of the subpoenaed documents, the majority denied the motion for a preliminary injunction, ordered that the documents “be promptly transmitted to the Committees in daily batches as they are assembled, beginning seven days from the date of the opinion,” and issued the mandate “forthwith.” App. 88a, 106a. The court made clear that it was finally resolving the parties’ legal disputes. *See* App. 98a (“[W]e recognize that we are essentially ruling on the ultimate merits of Appellants’ claims.” (citing *Munaf v. Geren*, 553 U.S. 674, 691 (2008))).

Judge Livingston concurred in part and dissented in part. She agreed with the majority that this “appeal raises an important issue regarding the investigative authority of two committees of the United States House of Representatives.” App. 110a. And she agreed with the majority’s resolution of certain statutory issues that Applicants do not press here. App. 110a. But that is where the agreement ended. Judge Livingston otherwise rejected the majority’s legal analysis and its disposition of the appeal. She would have remanded the entire dispute “to permit the district court and the parties the opportunity to provide this Court with an adequate record



regarding the legislative purpose, pertinence, privacy and separation of powers issues in this case.” App. 164a.

In Judge Livingston’s view, this dispute raises serious separation-of-powers issues. As she explained: “the parties are unaware of *any* Congress before this one in which a standing or permanent select committee of the House has issued a third-party subpoena for documents targeting a President’s personal information solely on the rationale that this information is ‘in aid of legislation.’” App. 111a (citations omitted). Given the unprecedented nature of these legislative subpoenas, Judge Livingston found the Committees’ “dragnet” demands “deeply troubling.” App. 118a n.7, 108a. “Contrary to the majority’s suggestion, it is not at all difficult to conceive how standing committees exercising the authority to issue third-party subpoenas in aid of legislation might significantly burden presidents with myriad inquiries into their business, personal, and family affairs.” App. 126a. It was the responsibility of the court, therefore, to “take on the ... sensitive task of ensuring that *Congress*, in seeking the President’s personal information in aid of legislation, has employed ‘procedures which prevent the separation of power from responsibility.’” App. 128a (quoting *Watkins*, 354 U.S. at 215).

Judge Livingston doubted whether the Committees could meet that burden. There was no “clear reason why a congressional investigation aimed generally at closing regulatory loopholes in the banking system need focus on over a decade of financial information regarding this President, his family, and his business affairs.” App. 133a. Nor was it clear “how the broad purposes pursued by the Committee are

consistent with the granular detail that these subpoenas seek.” App. 133a. Judge Livingston also thought that these subpoenas for “personal information about the President, his family, and his businesses, presents a serious question” as to the Committees’ statutory authority. App. 142a-43a.

On December 4, Applicants filed a motion with the Second Circuit to recall and stay the mandate. CA2 Doc. 229. The Second Circuit has yet to rule on that motion. Applicants notified the Second Circuit that, due to the extraordinary circumstances created by the immediate issuance of the mandate and the court’s 7-day compliance deadline, Applicants would seek the same relief from this Court without awaiting a ruling from the Second Circuit.

### **REASONS FOR GRANTING THE STAY**

The standards for granting a stay are “well settled,” *Deaver v. United States*, 483 U.S. 1301, 1302 (1987) (Rehnquist, C.J., in chambers), and they apply equally to applications for recall and stay of a mandate, *see Teva Pharm. USA, Inc. v. Sandoz, Inc.*, 572 U.S. 1301, 1301 (2014) (Roberts, C.J., in chambers); *Wise v. Lipscomb*, 434 U.S. 1329, 1333-34 (1977) (Powell, J., in chambers). To receive such relief pending the filing and disposition of a petition for writ of certiorari, an applicant must show “(1) a reasonable probability that four Justices will consider the issue sufficiently meritorious to grant certiorari; (2) a fair prospect that a majority of the Court will vote to reverse the judgment below; and (3) a likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010). “In close cases the Circuit Justice or the Court will balance the equities and weigh the relative harms to the applicant and to the respondent.” *Id.* Applicants meet this test.

**I. There is a reasonable probability that the Court will grant certiorari to determine whether the Committees' subpoenas are lawful.**

This petition will present “an important question of federal law that has not been, but should be, settled by the Court.” S. Ct. R. 10(c). The United States filed an amicus brief in support of Applicants, arguing that this dispute “raises significant separation-of-powers issues” and presents questions “of unusual importance and delicacy.” CA2 Doc. 143 at 6. And the Second Circuit issued a 106-page majority opinion, followed by a 59-page dissent, explaining that the case “raises an important issue concerning the investigative authority of two committees of the United States House of Representatives and the protection of privacy due the President of the United States.” App. 4a; *see also* App. 111a (Livingston, J., concurring in part and dissenting in part).

Moreover, there is no reasonable argument that resolution of these important issues turns on settled law. As Judge Livingston explained: “Here, the parties have not identified, and my own search has failed to unearth, *any* previous example, in any previous Congress, of a standing or permanent select committee of the House of Representatives or the Senate using compulsory process to obtain documents containing a President’s personal information from a third party in aid of legislation.” App. 124a. Instead, the relevant settled law counsels that Congress’s power to investigate “is not unlimited,” *Eastland*, 421 U.S. at 504 n.15; *Barenblatt v. United States*, 360 U.S. 109, 111 (1959); *Watkins*, 354 U.S. at 187; *Quinn v. United States*, 349 U.S. 155, 161 (1955); *McGrain v. Daugherty*, 273 U.S. 135, 173-74 (1927), and that exercises of the power to compel testimony and documents require “the

most careful scrutiny,” *Kilbourn v. Thompson*, 103 U.S. 168, 192 (1880). This Court’s review is thus warranted to confront serious and unanswered questions about the outer reaches of Congress’s investigatory authority, including whether the Committees are pursuing unconstitutional ends, whether the Committees must make a heightened showing because they are seeking the President’s records, and whether the duty to avoid constitutional issues, when possible, required the Second Circuit to decide the case differently. This Court has determined that there is a reasonable probability that these questions warrant review. *Trump v. Mazars USA, LLP*, No. 19A545, 2019 WL 6328115 (U.S. Nov. 25, 2019). In fact, House Counsel agrees that “*Mazars* involves the same legal issues presented here.” CA2 Doc. 205 at 1; see CA2 Doc. 201 at 1 (same).

The likelihood of certiorari is magnified by the fact that the President of the United States will be a petitioner. See *Clinton v. Jones*, 520 U.S. 681, 689-90 (1997). The President is no “ordinary” litigant. *Cheney v. U.S. Dist. Court for D.C.*, 542 U.S. 367, 381 (2004) (quoting *Nixon*, 418 U.S. at 715). The Court gives him “special solicitude” and “high respect” when deciding whether to grant review. *Nixon v. Fitzgerald*, 457 U.S. 731, 743 (1982); *Cheney*, 542 U.S. at 385 (quoting *Jones*, 520 U.S. at 707). In *Jones*, the Court granted a petition filed by the President’s personal lawyers based solely on the case’s “importance.” 520 U.S. at 689. The Court was unmoved by arguments that *Jones* was “one-of-a-kind” and “did not create any conflict among the Courts of Appeals.” It deferred to the “representations made on behalf of the Executive Branch as to the potential impact of the precedent established

by the Court of Appeals,” *id.* at 690—the same representations the Executive Branch has made in this case, CA2 Doc. 143 at 6-10.

President Trump should receive the same interim relief afforded to every other occupant of the office who has litigated a question of this type, and the same relief that this Court granted not two weeks ago: a stay that allows this Court to review his challenge to the subpoena. Granting this relief reflects the “public importance of the issues presented,” *Nixon*, 418 U.S. at 686-87, as well as the “judicial deference” that is traditionally afforded to the President in light of his unique “constitutional responsibilities and status,” *Cheney*, 542 U.S. at 385 (quoting *Fitzgerald*, 457 U.S. at 753). The Court, in sum, should preserve its ability to review this case not to benefit this “particular President,” but for the sake of “the Presidency itself.” *Hawaii*, 138 S. Ct. at 2418.

## **II. There is a fair prospect that this Court will reverse the Second Circuit’s decision upholding the bulk of the subpoenas.**

The subpoenas targeting the President, his family, and his business dealings do not fall within the Committees’ constitutional or statutory authority. To begin, the majority’s mistaken conclusion that the subpoenas “do not concern a dispute between the Legislature and the Executive Branches,” App. 9a, infects its entire decision. This case raises “profound separation-of-powers concerns.” App. 118a (Livingston, J., concurring in part and dissenting in part); see *Trump v. Mazars USA, LLP*, 941 F.3d 1180, 1180-81 (D.C. Cir. 2019) (Katsas J., dissenting from denial of rehearing en banc) (explaining that the “wolf” of legislative subpoenas for a President’s personal records “comes as a wolf” (citation omitted)). As Judge Livingston explained, the

“paucity of historical practice alone is reason for courts to pause in assessing this dispute between a President and two House committees.” App. 125-26a. “Contrary to the majority’s suggestion, it is not at all difficult to conceive how standing committees exercising the authority to issue third-party subpoenas in aid of legislation might significantly burden presidents with myriad inquiries into their business, personal, and family affairs.” App. 126a (Livingston, J., concurring in part and dissenting in part). Subpoenas like these raise “significant issues for the future regarding interbranch balance and the ability of this and future Presidents to perform their duties without undue distraction.” App. 141a-42a (Livingston, J., concurring in part and dissenting in part).

The majority thus was wrong to treat these subpoenas as if they were issued “to any private individual.” App. 10a. There can be no doubt that “these subpoenas target the *President* in seeking personal and business financial records of not only the President himself, but his three oldest children and members of their immediate family, plus the records of the Trump Organization and a litany of organizations with which the President is affiliated.” App. 118a n.7 (Livingston, J., concurring in part and dissenting in part). And the President is not an “ordinary” litigant. *Cheney*, 542 U.S. at 381-82. “These subpoenas,” as a consequence, “are deeply problematic.” App. 129a (Livingston, J., concurring in part and dissenting in part). The judicial inquiry “does not grow *easier* when Congress seeks a *President’s* personal information.” App. 119a (Livingston, J., concurring in part and dissenting in part). The “task grows more difficult.” App. 120a.

Given “the ‘unique constitutional position of the President’ in our scheme of government,” App. 119a-20a (Livingston, J., concurring in part and dissenting in part) (quoting *Franklin v. Massachusetts*, 505 U.S. 788, 800 (1992)), these subpoenas lack a “legitimate legislative purpose,” *McGrain*, 273 U.S. at 161. Congress may not attempt to investigate wrongdoing under the guise of lawmaking; law-enforcement powers “are assigned under our Constitution to the Executive and the Judiciary.” *Quinn*, 349 U.S. at 161. “Congress cannot undertake a legislative investigation” of the President “if the ‘gravamen’ of the investigation rests on ‘suspicions of criminality.’” *Trump v. Mazars USA, LLP*, 940 F.3d 710, 751 (D.C. Cir. 2019) (Rao, J., dissenting) (quoting *Kilbourn*, 103 U.S. at 193, 195).

But that is just what the Committees are doing here. These “dragnet” subpoena look nothing like a legislative inquiry. App. 118a n.7. They are instead framed like criminal subpoenas, demanding documents that suggest Applicants have engaged in “suspicious activity” or violations of the law. *See* CA2 Doc. 37 at 41-43, 56. Moreover, these subpoenas are laser-focused on the businesses and family members of one person—a hallmark of executive and judicial power; “legislative judgments,” by contrast, “normally depend more on the predicted consequences of proposed legislative actions and their political acceptability, than on precise reconstruction of past events,’ which appears to be the focus of the present subpoenas.” App. 109a n.3 (Livingston, J., concurring in part and dissenting in part) (quoting *Senate Select Comm. on Presidential Campaign Activities v. Nixon*, 498 F.2d 725, 732 (D.C. Cir. 1974)). This looks like law enforcement because it is.

If it were not clear enough from the face of the subpoenas, the Committees and their lawyers repeatedly emphasized their law-enforcement purposes. The Chairman of the Intelligence Committee summed up the purpose of his investigation this way: “Congress has a duty to expose foreign interference, hold Russia to account, ensure that U.S. officials—including the President—are serving the national interest and, if not, are held accountable.” *Press Release* (Feb. 6, 2019), [bit.ly/2UMzwTE](https://bit.ly/2UMzwTE). Likewise, the Financial Services Committee’s alleged basis for the subpoena laments that “financial institutions and individuals” are not “facing convictions and sentences” for breaking federal law and “affirms that financial institutions and individuals should be held accountable for money laundering” and other crimes. H.R. Res. 206 at 4-5. And, “at oral argument, the Committees’ lawyer appeared explicitly to equate these subpoenas to those issued in connection with federal criminal investigations.” App. 136a n.20 (Livingston, J., concurring in part and dissenting in part). For its part, the majority endorsed this investigation by suggesting “(albeit with no evidence in the record before [it]) that past transactions between Deutsche Bank and the President in his pre-presidential business life may have violated banking regulations.” App. 132a (Livingston, J., concurring in part and dissenting in part) (citing Maj. Op. at 73a n.67, 74a). This is all law enforcement.

Similarly, there “is no congressional power to expose for the sake of exposure.” *Watkins*, 354 U.S. at 200. “Investigations conducted” by Congress “solely for the personal aggrandizement of the investigators or to ‘punish’ those investigated” are illegitimate. *Id.* at 187. Here, the Committees are plainly targeting the President in



hopes of proving that he broke the law or finding other information to “expose” about him. As the House General Counsel conceded, “one of the reasons why [the subpoena] is the way it is ... because, as everybody knows, Mr. Trump has refused to do what so many other in his position do, which is disclose.” CA2 Doc. 37 at 105. The Committees lack subpoena power for this kind of gamesmanship.

The fact that the Committees claim to be using the President, his businesses, and his family as a “case study” confirms they lack a legitimate legislative purpose. According to the majority, “the fact that relevant information obtained also serves as a useful ‘case study’ does not detract from the lawfulness of the subpoenas.” App. 73a n.67. But, as Judge Livingston explained, this “‘case study’” rationale is an effort to whitewash an obvious attempt to force “the disclosure of [Applicants’] private and business affairs.” App. 157a n.31. “Nor does” this “rationale reveal how the broad purposes pursued by the Committee are consistent with the granular detail that these subpoena seek.” App. 133a. “Some case study rationale,” Judge Livingston correctly summarized, “will *always* be present.” App. 134a. “But the regular issuance of third-party legislative subpoenas by single committees of one House of Congress targeting a President’s personal information would be something new, potentially impairing public perceptions of the legislative branch by fueling perceptions that standing committees are engaged, *not in legislating*, but in opposition research.” App. 134a (emphasis added).

But even if these subpoenas had a legitimate legislative purpose, they still fall far short of what is required to subpoena the President. While this Court has “upheld

some congressional investigations that incidentally uncover unlawful action by private citizens,” investigating alleged “wrongdoing of the President ... has never been treated as merely incidental to a legislative purpose.” *Mazars*, 940 F.3d at 772 (Rao, J., dissenting). To address these concerns, the Committees must, at a minimum, meet the heightened showing of need the Court requires before approving subpoenas that demand presidential and White House records. *See Nixon*, 418 U.S. at 713; *Cheney*, 542 U.S. at 385; Petition for Certiorari, *Trump v. Vance*, No. 19-635 at 34-36 (filed Nov. 14, 2019); U.S. Amicus Brief, No. 19-635, *Trump v. Vance*, at 21 n\* (filed Nov. 22, 2019). This is the only way to “ensure due consideration to the separation-of-powers concerns that the Supreme Court identified and deemed essential for judicial respect in *Jones*.” App. 128a-29a (Livingston, J., concurring in part and dissenting in part) (emphasis omitted).

The subpoenas cannot meet that standard. It matters to the analysis whether, as in *Nixon*, the subpoenas “‘precisely identified’ and ‘specifically enumerated’ the relevant materials” or, as in *Cheney*, the discovery requests asked for “everything under the sky.” *Id.* at 387 (cleaned up). “The very specificity of the subpoena requests serves as an important safeguard against unnecessary intrusion into the operation of the Office of the President.” *Id.* These congressional “subpoenas are surely broad in scope.” App. 45a. “The district court acknowledged that in a routine civil case, it would not have ordered the disclosures here,” meaning that somehow now “a President has *less* protection from the unreasonable disclosure of his personal and business affairs than would be afforded any litigant in a civil case.” App. 115a-16a (Livingston, J.

concurring in part and dissenting in part). The Second Circuit’s approach denies the Office of the President the respect “that should inform the conduct of the entire proceeding.” *Cheney*, 542 U.S. at 385.

Last, the Second Circuit should have avoided all these serious constitutional questions. A congressional committee cannot issue a subpoena that the House Rules do not authorize. *Watkins*, 354 U.S. at 203-05. “[W]here a statute is susceptible of two constructions, by one of which grave and doubtful constitutional questions arise and by the other of which such questions are avoided,” the Court’s “duty is to adopt the latter.” *Jones v. United States*, 529 U.S. 848, 857 (2000). That rule is “even more applicable to [authorizing] resolutions than to formal legislation.” *Rumely*, 345 U.S. at 46. At the very least, there is an “open question” as to whether the House Rules authorize these subpoenas. App. 137a (Livingston, J., concurring in part and dissenting in part). That should have been the end of the matter given the serious separation-of-powers issues this case raises.

The Second Circuit disregarded this admonition because, in its view, this is an appeal that “involves solely private financial documents” and a “Lead Plaintiff” who “sues only in his individual capacity.” App. 97a. But that the subpoenas seek personal documents does not negate this case’s separation-of-powers implications. *See* App. 121a-28a (Livingston, J., concurring in part and dissenting in part). Nor does the fact that the President brought this suit in his individual capacity. *See* App. 122a n.8 (Livingston, J., concurring in part and dissenting in part). What matters is whether there are serious issues “that concern the relative powers of coordinate branches of

government.” *Public Citizen v. U.S. Dept. of Justice*, 491 U.S. 440, 466 (1989). There clearly are. The Second Circuit thus erred in construing the Committees’ statutory authority broadly to permit issuance of unprecedented subpoenas for the President’s personal records. *See Rumely*, 345 U.S. at 46.

### **III. Applicants will suffer irreparable harm absent a stay.**

There is a clear “likelihood of irreparable harm if the judgment is not stayed.” *Philip Morris USA Inc. v. Scott*, 561 U.S. 1301, 1302 (2010) (Scalia, J., in chambers). The district court and the Second Circuit both reached that conclusion. *See* App. 13a-14a; App. 172a-73a; App. 112a (Livingston, J., concurring in part and dissenting in part). And the Committees conceded the point. CA2 Doc. 37 at 114 (Mr. Letter: “The balance of the equities, as I said, I realize, yes, they’ve got the irreparable injury.”). There is no other reasonable conclusion.

Without a stay, the banks will disclose the bulk of the Applicants’ records to the Committees, mooted the case as to those records, and irrevocably destroying Applicants’ legal right to keep them confidential. Certiorari is part of “the normal course of appellate review,” and “foreclosure of certiorari review by [the Supreme] Court would impose irreparable harm.” *Hudson*, 468 U.S. at 1302 (Burger, C.J., in chambers); *accord Mikutaitis v. United States*, 478 U.S. 1306, 1309 (1986) (Stevens, J., in chambers). “The fact that disclosure would moot that part of the Court of Appeals’ decision requiring disclosure,” accordingly “create[s] an irreparable injury.”

*John Doe Agency*, 488 U.S. at 1309 (Marshall, J., in chambers). Preventing mootness thus is “[p]erhaps the most compelling justification” for a stay pending certiorari. *Id.*

Even apart from mootness, the “disclosure of private, confidential information ‘is the quintessential type of irreparable harm that cannot be compensated or undone by money damages.’” *Airbnb, Inc. v. City of New York*, 373 F. Supp. 3d 467, 499 (S.D.N.Y. 2019); accord *Maness v. Meyers*, 419 U.S. 449, 460 (1975); *Araneta v. United States*, 478 U.S. 1301, 1304-05 (1986) (Burger, C.J., in chambers); *Providence Journal Co. v. FBI*, 595 F.2d 889, 890 (1st Cir. 1979). Loss of confidentiality is “[c]learly ... irreparable” because “[t]here is no way to recapture and remove from the knowledge of others information improperly disclosed.” *Merrill Lynch, Pierce, Fenner & Smith, Inc. v. Bishop*, 839 F. Supp. 68, 72 (D. Me. 1993); *Metro. Life Ins. Co. v. Usery*, 426 F. Supp. 150, 172 (D.D.C. 1976).

As both the panel majority and the district court determined, “the committees have not committed one way or the other to keeping plaintiffs’ records confidential from the public once received.” App. 14a, 173a. This risk of public disclosure irreparably harms Applicants. See *Mikutaitis*, 478 U.S. at 1309; *Airbnb*, 373 F. Supp. 3d at 499. But the Second Circuit and the district court also agreed that even disclosure to the Committees irreparably harms Applicants. App. 14a, 173a. As the district court explained, “the very act of disclosure to Congress is ... irreparable.... [P]laintiffs have an interest in keeping their records private from everyone, including congresspersons ....” App. 172a.

**IV. The balance of equities and relative harms weigh strongly in favor of granting a stay.**

That Applicants will suffer severe, case-mooting harm should end the debate over the necessity of recall and stay the Second Circuit’s mandate. Even if this were a “close case,” however, the “balance [of] equities” strongly favors Applicants. *Rostker*, 448 U.S. at 1308 (Brennan, J., in chambers). Stays pending certiorari are relatively “short.” *In re Biaggi*, 478 F.2d 489, 493 (2d Cir. 1973) (Friendly, J.). And, the Committees have identified no legitimate reason why they need any of Applicants’ records immediately. “[T]he events at issue are already several years old and if the [defendants] prevail[] in this litigation, the records will ultimately be produced.” *Judicial Watch, Inc. v. U.S. Dep’t of Homeland Sec.*, 514 F. Supp 2d 7, 11 (D.D.C. 2007). Any “interest” that the Committees have “in receiving [this] information immediately” simply “poses no threat of irreparable harm.” *John Doe Agency*, 488 U.S. at 1309 (Marshall, J., in chambers).

The Committees’ only possible need for the relevant portion of Applicants’ records is that they might be a “useful case study” for their review of general legislation involving “broader problems” like global money laundering and supervision of the banking, thrift, and credit union industries. D.Ct. Dkt. 51; *see* App. 60a-61a. In addition to the fact that choosing the President of the United States as a “case study” to gather unlimited information for general legislation is unprecedented and unlawful, *see supra* 17, study of the effectiveness of current laws related to the potential for new legislation is not urgent in any meaningful sense—especially in light of the “time and difficulty of enacting new legislation,” *Coal. for Responsible*

*Regulation, Inc. v. EPA*, 2012 WL 6621785, at \*22 (D.C. Cir. 2012) (Kavanaugh, J., dissenting from denial of rehearing en banc). Nor do the Committees “need” these records to legislate, given that, again, “legislative judgments normally depend more on the predicted consequences of proposed legislative actions” than on examining “certain named individuals” or “precise[ly] reconstructi[ng] past events.” *Senate Select Comm.*, 498 F.2d at 732; App. 109 n.3 (Livingston, J., concurring in part and dissenting in part).

Even assuming the Committees would suffer some abstract harm if they could not immediately access the records presently subject to immediate disclosure, that harm is dwarfed by the irreparable, case-mooting harm that Applicants will suffer if relief is denied. *See Providence Journal*, 595 F.2d at 890 (granting a stay because “the total and immediate divestiture of appellants’ rights to have effective review” outweighed any harm from “postpon[ing] the moment of disclosure”); *Araneta*, 478 U.S. at 1304-05 (Burger C.J., in chambers) (granting a stay despite the public’s “strong interest in moving forward expeditiously with a grand jury investigation” because “the risk of injury to the applicants could well be irreparable and the injury to the Government will likely be no more than the inconvenience of delay”). “Refusing a stay” in this case, at bottom, “may visit an irreversible harm on applicants, but granting it will apparently do no permanent injury to respondents.” *Philip Morris*, 561 U.S. at 1305 (Scalia, J., in chambers).

But this Court does not need to balance the equities anew—it did so less than two weeks ago in favor of a stay, *Mazars*, No. 19A545, 2019 WL 6328115 (U.S. Nov.

25, 2019), as have several earlier decisions, *see, e.g.*, Judge Order, *Jones v. Clinton*, No. 95-1167 (8th Cir. Apr. 16, 1996) (granting President Clinton’s “motion to stay the mandate” until “a petition for writ of certiorari has been filed” and the Supreme Court enters a “final disposition of the case”). In *Eastland*, for example, the D.C. Circuit twice stayed a congressional subpoena to the plaintiff’s bank. *U.S. Servicemen’s Fund v. Eastland*, 488 F.2d 1252, 1254 (D.C. Cir. 1973). The “decisive element” favoring a stay was the fact that “unless a stay is granted this case will be mooted, and there is likelihood, that irreparable harm will be suffered” by the plaintiff when the enforcement date arrives. *Id.* This Court ultimately reversed the D.C. Circuit’s decision on the merits. But it praised how the court handled the preliminary procedural issues in the case—stressing the need to avoid the risk that “compliance by the third person could frustrate any judicial inquiry” into the subpoena’s legality. *Eastland*, 421 U.S. at 501 n.14. That same risk exists here.

Finally, in *United States v. Nixon*—the most famous case involving a subpoena to a sitting President—the Court “stayed” the subpoena “pending [its] resolution” of the merits. 418 U.S. at 714. In fact, the Court granted a stay in *Nixon* even though the subpoena sought evidence that was “specific and central to the fair adjudication of a particular criminal case.” *Id.* at 713. It is untenable to think that the Committees somehow need Applicants’ records more than the President’s records were needed in *Nixon*.

It makes sense “that from the legislative viewpoint, any alternative to outright enforcement of the subpoena entails delay.” *United States v. AT&T Co.*, 567 F.2d 121,



130 (D.C. Cir. 1977). But delay “is an inherent corollary of the existence of coordinate branches.” *Id.* Courts must always “balance” the “public interest in the congressional investigation” against individual rights and “executive ... interests.” *Id.* at 128. Striking that balance in favor of preserving the status quo is especially important when the case raises unprecedented separation-of-powers issues that warrant the Court’s review. *See supra* 11. Generic concerns about “delay” cannot prevail when, as here, the case will have lasting “consequences for the functioning of the Presidency.” *In re Lindsey*, 158 F.3d 1263, 1288-89 (D.C. Cir. 1998) (Tatel, J., concurring in part and dissenting in part).

### CONCLUSION

For these reasons, Applicants respectfully ask the Court to recall and stay the Second Circuit’s mandate pending the filing and disposition of Applicants’ petition for certiorari. Because “compliance with the three subpoenas” has only been “stayed for seven days to afford Appellants an opportunity to apply to the Supreme Court or a Justice thereof for an extension of the stay,” App. 106a, Applicants also respectfully ask the Court to administratively recall and stay issuance of the mandate pending disposition of this Application by December 10.

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